

STATE OF NEW YORK

6248--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 27, 2025

Introduced by M. of A. GRIFFIN -- read once and referred to the Committee on Health -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to making it unlawful for a person under the age of twenty-one to possess tobacco and vaping products

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Article 13-F of the public health law is amended by adding
2 a new section 1399-mm-4 to read as follows:

3 § 1399-mm-4. Unlawful possession of tobacco or vaping products by
4 persons under the age of twenty-one years. 1. Except as otherwise
5 provided in this section, no person under the age of twenty-one years
6 shall possess any tobacco or vaping product.

7 2. Any person who unlawfully possesses a tobacco or vaping product may
8 be summoned before and examined by a court having jurisdiction of that
9 charge; provided, however, that nothing in this section shall authorize
10 or be construed to authorize a peace officer, a police officer or an
11 enforcement officer to arrest a person who unlawfully possesses a tobac-
12 co or vaping product. If a determination is made sustaining such charge
13 the court may impose a civil fine not exceeding fifty dollars and/or
14 completion of a tobacco awareness program if such program is being
15 offered and/or an appropriate amount of community service not to exceed
16 thirty hours.

17 3. No such determination shall operate as a disqualification of any
18 such person subsequently to hold public office, public employment or as
19 a forfeiture of any right or privilege or to receive any license granted
20 by public authority; and no such person shall be denominated a criminal
21 by reason of such determination, nor shall such determination be deemed
22 a conviction.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 4. Whenever a peace officer, police officer or an enforcement officer
2 shall observe a person under twenty-one years of age openly in
3 possession of a tobacco or vaping product, such officer may seize the
4 tobacco or vaping product and shall deliver it to the custody of their
5 department.

6 5. Any tobacco or vaping product seized in violation of this section
7 is hereby declared a nuisance. The official to whom the tobacco or
8 vaping product has been delivered shall, no earlier than three days
9 following the return date for initial appearance on the summons, dispose
10 of or destroy the tobacco or vaping product seized or cause it to be
11 disposed of or destroyed. Any person claiming ownership of a tobacco or
12 vaping product seized under this section may, on the initial return date
13 of the summons or earlier on five days notice to the official or depart-
14 ment in possession of the tobacco or vaping product, apply to the court
15 for an order preventing the destruction or disposal of the tobacco or
16 vaping product seized and ordering the return of that tobacco or vaping
17 product. The court may order the tobacco or vaping product returned if
18 it is determined that return of the tobacco or vaping product would be
19 in the interest of justice or that the tobacco or vaping product was
20 improperly seized.

21 6. For purposes of this section, "vaping products" shall mean the use
22 of an electronic cigarette or any products associated with the use of
23 such.

24 § 2. This act shall take effect on the first of November next succeed-
25 ing the date on which it shall have become a law.